

		patient. (Compl. ¶ 37.) Defendant breached its duty by allowing de los Santos to violate Plaintiff's rights as a patient and Plaintiff was harmed. (<i>Id.</i> at ¶¶ 38-39.) The Complaint fails to allege that Defendant had knowledge of de los Santos's unfitness. There are no facts showing that Defendant should have known that de los Santos had a propensity to assault and batter patients. The demurrer is sustained as to the fifth cause of action. Defendant to give notice.
51	Flynn vs. FCA US, LLC 23-01333219	Motion to Set Aside/Vacate Dismissal NO TENTATIVE RULING – Parties to appear on Zoom or in-person.
52	Wysocki vs. Hoang 25-01512631	Motion to Be Relieved as Counsel of Record Attorney Yuri Voronin and Wade Litigation, APC (together, "Moving Counsel") move to be relieved as counsel for Defendants John Hoang, an individual, and John Hoang dba All American Builders & Contractors. The unopposed motion is GRANTED. The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.) Rule of Court 3.1362 governs motions to be relieved as counsel. The court has reviewed the materials submitted by Moving Counsel, Attorney Yuri Voronin and Wade Litigation, APC, and finds that Moving Counsel have complied with the requirements of Rule 3.1362. The court's order shall become effective upon the filing of a Proof of Service showing service of the order on Defendants John Hoang, an individual, and John Hoang dba All American Builders & Contractors. Moving Counsel to give notice within 5 court days of the hearing.
54	Reichert vs. Wightman 25-01481529	2x Motions to Be Relieved as Counsel of Record The motions of attorney Casey R. Johnson to withdraw as attorney of record for Plaintiffs Jeffery Reichert (ROA 55) and Nicolette Reichert, individually and as Guardian ad Litem for Asa Reichert and Violet Reichert (ROA 46) are DENIED WITHOUT PREJUDICE. California Rule of Court, rule 3.1362(d), requires moving counsel to serve the notice of motion, motion, declaration, and proposed order on the client and all parties who have appeared in the action. The proof of service submitted with the moving papers does not demonstrate that the clients were served. In addition, moving counsel has not lodged a proposed order (Form MC-053) as required by California Rules of Court, rule 3.1362(e), and the record does not